

**LIVE**

Learning Space

**NEWSPAPER**

**24<sup>th</sup> August, 2017**

**ITEM WISE EDITORIALS**

**34<sup>th</sup> WEEK**



# AFGHANISTAN POLICY OF USA

**UPSC CSE – GS II**

**GS II... EFFECT OF POLICIES AND POLITICS OF DEVELOPED  
COUNTRIES ON INDIA'S INTERESTS.**

1

## Undoing injustice

The Supreme Court invokes constitutional norms and Islamic canon to bar instant talaq.

By declaring the discriminatory practice of instant triple talaq as unconstitutional, the Supreme Court has sent out a clear message that personal law can no longer be privileged over fundamental rights. Three of the five judges on the Constitution Bench have not accepted the argument that instant talaq, or *talaq-e-biddat*, is essential to Islam and, therefore, deserves constitutional protection under Article 25. The biggest virtue of the two opinions constituting the majority judgment is that they do not have to undermine any religious tenet to make their point. On the contrary, as Justice Kurian Joseph says, the forbidden nature of triple talaq can be gleaned from the Koran itself. Justice Rohinton Nariman, writing the main judgment, locates the practice in the fourth degree of obedience required by Islamic tenets, namely, *makruh*, or that which is reprobated as unworthy. The main ground on which the practice has been struck down is a simple formulation: that "this form of talaq is manifestly arbitrary in the sense that the marital tie can be broken capriciously and whimsically by a Muslim man without any attempt at reconciliation so as to save it." In fact, the final summation is so simple that the court did not even have to elaborate on how triple talaq violates gender equality. On the contrary, Justice Nariman says that having held the practice to be arbitrary, there is really no need to go into the element of discrimination. The court deserves commendation for undoing the gender injustice implicit in the practice so effortlessly, within constitutional parameters as well as the Islamic canon.

The present case was initiated *suo motu* by the court, but opinion against triple talaq could not have gathered critical mass and the case against it significantly bolstered if it weren't for a few women standing up to the community's conservative elements and challenging it. Any other outcome would have been a great injustice to them. Even the judges in the minority have had to concede that their reasoning is based mainly on the fact that this form of talaq is a matter of personal law, and therefore entitled to constitutional protection. "It is not open to a court to accept an egalitarian approach over a practice which constitutes an integral part of religion," writes Chief Justice J.S. Khehar in his minority opinion. Interestingly, even his view segues into a somewhat egalitarian position, restraining Muslim men from pronouncing triple talaq until Parliament enacts a law to regulate it. The All India Muslim Personal Law Board, and all those who supported its regressive opinion that even an unworthy practice should not be dislodged by judicial verdict, should now accept the verdict in the interests of a modern social order. And there is no reason to contend that their faith has been unduly secularised. For, as Justice Joseph concludes, "what is bad in theology is bad in law as well."

*The Court merely acted as a reformer of a religious community rather than upholding the fundamental rights of women, when found in contradiction with personal laws.*



Learning Space

THE  HINDU

Date : 23<sup>rd</sup> August, 2017



2

## And the war goes on

Donald Trump's plan for Afghanistan  
is still too short on specifics

U.S. President Donald Trump's decision to deepen the country's military engagement in war-torn Afghanistan signals a significant shift in the position he has held for years. Mr. Trump had campaigned to end American involvement in foreign conflicts and was particularly critical of the Afghan war, which he said was "wasting" American money. His announcement on Monday of the decision to send more troops to the country reflects a realisation that the U.S. does not have many options in dealing with its longest military conflict. This is also a grim reminder of the precarious security situation in Afghanistan. Sixteen years since George W. Bush ordered the American invasion of Afghanistan and toppled the Taliban regime, the insurgents are on the ascendant again. More than half the country's territory, mostly in rural, mountainous areas, is now controlled by the Taliban, while the Islamic State has set up base in eastern Afghanistan. In recent years, both the Taliban and the IS have carried out a number of terror attacks in the country, including at highly fortified military locations, raising questions about the very survival of the government in Kabul. This is a worry point for Mr. Trump's generals, who want to avoid the kind of vacuum left behind by the Soviet withdrawal in the late 1980s that plunged Afghanistan into a protracted civil war; the Taliban eventually took over.

But it is not going to be easy for Mr. Trump. He is the third consecutive American President to send troops to Afghanistan. Mr. Bush and Barack Obama failed to swing the situation sufficiently to ensure a long-lasting difference in Afghanistan's battleground. It is not clear if Mr. Trump can win a war they lost. His strategy can be summed up as Obama-plus – it builds on the premises of the Obama plan of additional troops and regional diplomacy. But unlike Mr. Obama, who set a timetable for the withdrawal of troops, Mr. Trump is ready for an open-ended engagement. He also said the focus of the American mission should narrow down to fighting terrorists, not rebuilding Afghanistan "in our own image". Third, Mr. Trump minced no words while calling Pakistan a country that shelters terrorists. He also wants India to play a greater role in providing economic and developmental assistance to Afghanistan. India has welcomed Mr. Trump's strategy, as the U.S.'s objectives in building a stable Afghanistan and ending Pakistan's sponsorship of terrorism are exactly in line with India's own goals for the region. It has, however, correctly reminded Mr. Trump that it does not need his request, never mind his coarse reference to "billions of dollars" made in bilateral trade with the U.S., in order to fulfil its commitment to Afghanistan's economic development. Such open transactionalism will not serve the U.S.'s efforts in winning allies for its new Afghanistan policy, nor indeed will it further its mission in a country that is not unfairly called the "graveyard of empires".

THE  HINDU

Date : 24<sup>th</sup> August, 2017

### And the war goes on

Donald Trump's plan for Afghanistan is still too short on specifics

U.S. President Donald Trump's decision to deepen the country's military engagement in war-torn Afghanistan signals a significant shift in the position he has held for years. Mr. Trump had campaigned to end American involvement in foreign conflicts and was particularly critical of the Afghan war, which he said was "wasting" American money. His announcement on Monday of the decision to send more troops to the country reflects a realization that the U.S. does not have many options in dealing with its longest military conflict. This is also a grim reminder of the precarious security situation in Afghanistan. Sixteen years since George W. Bush ordered the American invasion of Afghanistan and toppled the Taliban regime, the insurgents are on the ascendant again. More than half the country's territory, mostly in rural, mountainous areas, is now controlled by the Taliban, while the Islamic State has set up base in eastern Afghanistan. In recent years, both the Taliban and the IS have carried out a number of terror attacks in the country, including at highly fortified military locations, raising questions about the very survival of the government in Kabul. This is a worry point for Mr. Trump's generals, who want to avoid the kind of vacuum left behind by the Soviet withdrawal in the late 1980s that plunged Afghanistan into a protracted civil war; the Taliban eventually took over.

But it is not going to be easy for Mr. Trump. He is the third consecutive American President to send troops to Afghanistan. Mr. Bush and Barack Obama failed to swing the situation sufficiently to ensure a long-lasting difference in Afghanistan's battleground. It is not clear if Mr. Trump can win a war they lost. His strategy can be summed up as Obama-plus – it builds on the premises of the Obama plan of additional troops and regional diplomacy. But unlike Mr. Obama, who set a timetable for the withdrawal of troops, Mr. Trump is ready for an open-ended engagement. He also said the focus of the American mission should narrow down to fighting terrorists, not rebuilding Afghanistan "in our own image". Third, Mr. Trump minced no words while calling Pakistan a country that shelters terrorists. He also wants India to play a greater role in providing economic and developmental assistance to Afghanistan. India has welcomed Mr. Trump's strategy, as the U.S.'s objectives in building a stable Afghanistan and ending Pakistan's sponsorship of terrorism are exactly in line with India's own goals for the region. It has, however, correctly reminded Mr. Trump that it does not need his request, never mind his coarse reference to "billions of dollars" made in bilateral trade with the U.S., in order to fulfil its commitment to Afghanistan's economic development. Such open transactionalism will not serve the U.S.'s efforts in winning allies for its new Afghanistan policy, nor indeed will it further its mission in a country that is not unfairly called the "graveyard of empires".

## IMPORTANT QUESTIONS?

### ESSAY/ MAINS / GD / INTERVIEWS

USA recently announced its South-Asia policy with prime focus on Afghanistan. Examine the constraints in achieving the normalcy in Afghanistan.





## TRUMP's SOUTH-ASIA POLICY

- 1 The US President stated that the US troops would stay in Afghanistan for an open ended period of time.*
- 2 He also stated that the shift is from time-based approach to one based on conditions.*
- 3 America's strategic partnership with India will deepen in South Asia and Indo-Pacific.*
- 4 India must make more financial contribution for the stability of Afghanistan.*
- 5 Military in Afghanistan will be given more operational autonomy to tackle terrorists and commanders will be given authority to attack, whenever they chose to.*
- 6 USA would no longer tolerate Pakistan's policy of harbouring terrorists.*



## GROUND REALITY IN AFGHANISTAN

- 1 Tens of thousands of US and NATO troops for the past several years could not bring peace to Afghanistan.*
- 2 The country is known for corruption, high unemployment.*
- 3 Taliban is holding sway over substantial portion of the interior hinterland.*
- 4 Even attacks by Taliban are quite common in Kabul also.*
- 5 Afghanistan is yet to develop proper governance structures and poor governance is clearly evident.*
- 6 There is a system of President as well as CEO and hence more confusion.*
- 7 Even Cabinet formation is also a difficult task in Afghanistan.*







## A SLICE INTO HISTORY ...



- 1** *In 2001, George Bush ordered American invasion of Afghanistan. Subsequently, Taliban regime was collapsed.*
- 2** *The war's public aims were to dismantle al-Qaeda and to deny it a safe base of operations in Afghanistan by removing the Taliban from power.*
- 3** *The War in Afghanistan is the longest war in United States history*
- 4** *But today more than country's half the territory, mostly in rural, mountainous areas is controlled by Taliban, while the Islamic State has setup base in Eastern Afghanistan.*
- 5** *In recent times, Taliban and IS have carried out number of terror attacks in the country.*
- 6** *Highly fortified military locations were also attacked.*





## HOW TO VIEW THE TRUMP'S POLICY?

- 1 Trump is ready for an open-ended engagement and tens of thousands of troops could not bring peace to Afghanistan and how the open-ended engagement with few thousand troops will turn the tables is anybody's guess.*
- 2 The focus of American mission narrowing down to fighting terrorists, but not rebuilding Afghanistan is the debatable point as without governance structure in Afghanistan, it is not possible to bring the country out of terrorism.*
- 3 He wants India to play a greater role in economic and developmental assistance to Afghanistan and his open reference to billions of dollars made in bilateral trade with US is unwarranted.*
- 4 Always USA talks about Pakistan sponsoring terrorism. But, unfortunately on the ground, very little is done by the consecutive USA Presidents.*

2

### And the war goes on

Donald Trump's plan for Afghanistan  
is still too short on specifics

U.S. President Donald Trump's decision to deepen the country's military engagement in war-torn Afghanistan signals a significant shift in the position he has held for years. Mr. Trump had campaigned to end American involvement in foreign conflicts and was particularly critical of the Afghan war, which he said was "wasting" American money. His announcement on Monday of the decision to send more troops to the country reflects a realisation that the U.S. does not have many options in dealing with its longest military conflict. This is also a grim reminder of the precarious security situation in Afghanistan. Sixteen years since George W. Bush ordered the American invasion of Afghanistan and toppled the Taliban regime, the insurgents are on the ascendant again. More than half the country's territory, mostly in rural, mountainous areas, is now controlled by the Taliban, while the Islamic State has set up base in eastern Afghanistan. In recent years, both the Taliban and the IS have carried out a number of terror attacks in the country, including at highly fortified military locations, raising questions about the very survival of the government in Kabul. This is a worry point for Mr. Trump's generals, who want to avoid the kind of vacuum left behind by the Soviet withdrawal in the late 1980s that plunged Afghanistan into a protracted civil war; the Taliban eventually took over.

But it is not going to be easy for Mr. Trump. He is the third consecutive American President to send troops to Afghanistan. Mr. Bush and Barack Obama failed to swing the situation sufficiently to ensure a long-lasting difference in Afghanistan's battleground. It is not clear if Mr. Trump can win a war they lost. His strategy can be summed up as Obama-plus – it builds on the premises of the Obama plan of additional troops and regional diplomacy. But unlike Mr. Obama, who set a timetable for the withdrawal of troops, Mr. Trump is ready for an open-ended engagement. He also said the focus of the American mission should narrow down to fighting terrorists, not rebuilding Afghanistan "in our own image". Third, Mr. Trump minced no words while calling Pakistan a country that shelters terrorists. He also wants India to play a greater role in providing economic and developmental assistance to Afghanistan. India has welcomed Mr. Trump's strategy, as the U.S.'s objectives in building a stable Afghanistan and ending Pakistan's sponsorship of terrorism are exactly in line with India's own goals for the region. It has, however, correctly reminded Mr. Trump that it does not need his request, never mind his coarse reference to "billions of dollars" made in bilateral trade with the U.S., in order to fulfil its commitment to Afghanistan's economic development. Such open transactionalism will not serve the U.S.'s efforts in winning allies for its new Afghanistan policy, nor indeed will it further its mission in a country that is not unfairly called the "graveyard of empires".

*It is really doubtful  
whether the policy will  
bring the country, which  
is known as graveyard  
of empires, from the  
present day reality.*



Learning Space

THE  HINDU

Date : 24<sup>th</sup> August, 2017



# WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



## Learning Space

For Suggestions:

[suggestions@learningspace.in](mailto:suggestions@learningspace.in)

To Contact us:

[info@learningspace.in](mailto:info@learningspace.in)

### OUR TEAM

G. V. Rao

D. Sunil Kumar

V. Dayakar James

Y. Sri Poojita

G. Ravi Babu

D. Joji

K. Victor Babu

Visit us at:

[www.learningspacedigital.com](http://www.learningspacedigital.com)

0 8 6 6 -2 4 4 4 4 7 2

0 9 8 4 9 9 4 2 2 9 9